



FEDERAL MARITIME COMMISSION
OFFICE OF THE SECRETARY
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March 23, 2026

Draughn Arbona
CMA CGM (America) LLC
1 CMA CGM Way
Norfolk, VA 23502

Via email: usa.darbona@usa.cma-cgm.com and via UPS: Tracking No. 1Z1Y2R54NT97997859

RE: Special Permission Request for CMA CGM S.A., Org. No. 016541, SP-011975

Dear Ms. Arbona:

This is to advise that the application for special permission submitted on March 3, 2026, has been denied.

Under 46 U.S.C. § 40101(a)(1) each common carrier “shall keep open to public inspection in an automated tariff system, tariffs showing all its rates, charges, classifications, rules, and practices between all points or ports on its own route and on any through transportation route that has been established.” Additionally, under 46 U.S.C. § 40105(e)(1) “A new or initial rate or change in an existing rate that results in an increased cost to a shipper may not become effective earlier than 30 days after publication. However, for good cause, the Federal Maritime Commission may allow the rate to become effective sooner.”

The Commission has determined that CMA CGM S.A., Org. No. 016541 has failed to establish good cause and, therefore, the request to approve the application for special permission to depart from the statutory notice period requirements has been denied.

Sincerely,

David Eng
Secretary